

Court No. - 40

Case :- WRIT - C No. - 27493 of 2023

Petitioner :- Smt. Pratibha Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gyanendra Kumar Singh

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Shri Chetan Chatterjee, learned counsel for the contesting-respondent raised an objection that in view of para 4 of the policy, claim of the petitioner is unsustainable.
2. The case is passed over on the request of learned counsel for the petitioner for enabling him to prepare the matter.
3. Put up this case as fresh on 25th September, 2023.

Order Date :- 20.9.2023

Rama Kant

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1. Heard learned counsel for the petitioner, learned Standing Counsel for the State respondent no.1 and Sri Chetan Chatterjee for respondent nos.2 to 4.
2. The petitioner is before this Court with request to issue a writ, order or direction in the nature of certiorari quashing the order dated 15.4.2023 passed by the respondents and for direction to the respondents to provide off season benefits to the petitioner as per Government policy for agricultural industry.
3. Learned counsel for the petitioners, on the basis of instructions, states that the petitioner is ready and willing to clear the outstanding electricity dues, in case easy instalments are fixed as per Clause 6.14 of U.P. Electricity Supply Code 2005.
4. Learned counsel for the respondents submits that the department is interested in realizing the entire due amount and in case petitioner approaches the competent authority afresh by moving an appropriate application, definitely the same would be considered as per law.
5. No useful purpose would be served in keeping the writ petition pending consideration.
6. The writ petition, on consent, is disposed off with observations that in case the petitioner moves a fresh application before the Competent Authority under Clause 6.14 of U.P. Electricity Supply 2005 within a weeks time from today, the Authority concerned shall proceed to dispose of the application as per law.

Order Date :- 5.10.2023

RKP